

25PR00633 Estate of Cornelius George McFaul, Jr

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-08-10

Motion: Petition for Final Distribution

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25pr00633>

Source SHA-256: d9c5d644814d26f7221f117de87a11fcea23c0706e03db2d19dff0c927eed32d

Tentative Ruling: Estate of Cornelius George McFaul, Jr

Case Number

25PR00633

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 08/10/2026 - 08:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

The following must be submitted:

Supplement re: Escrow Statement. Real property was sold, but no Escrow Statement is on file. The escrow statement is a requisite filing to satisfy the final report requirements of the Probate Code (Prob. Code, § 10954(c)(1)), and the California Rules of Court (Rule 7.550):

Allegations of all actions taken under IAEA, including:

sales, purchases, or exchanges of assets (CRC, Rule 7.550(b)(2))

changes in the form of assets (CRC, Rule 7.550(b)(3))

assets on hand (CRC, Rule 7.550(b)(4))

a list of costs of administration, IF reimbursement of administration costs is requested (CRC, Rule 7.550(b)(7))

a list of the amount of any fees or commissions paid or to be paid (CRC, Rule 7.550(b)(8)), and the calculation of such fees or commissions as described in CRC, Rule 7.705(b) (CRC, Rule 7.550(b)(9))

The requirements of Rule 7.550(b) mandate an escrow statement for any sale of real property must be submitted in support of the final report.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 7, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US